

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 12/18/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01725
CASE NAME: LONELL SWEARINGTON VS. DONOR NETWORK WEST
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL ROGS, SET 1**
FILED BY: SWEARINGTON, LONELL R
TENTATIVE RULING:

Plaintiff moves to compel further responses to special interrogatories, set one. The three special interrogatories in question request (1) contact information for all employees during the relevant time period; (2) the number of employees during the period; and (3) the job titles or positions of employees in the same period.

(A separate motion to compel further responses to a request for production of documents is currently set for January 8, 2026. On December 4, 2025, the due date for opposition to the pending motion, Defendant filed a memorandum of points and authorities in opposition captioned for the January

requests for documents motion, instead of the pending motion, but the arguments made are written to apply to either type of discovery, and the issues are the same. Counsel's declaration is captioned for the pending Interrogatories motion. The Court views this as an inadvertent error in captioning.)

The dispute was the subject of an Informal Discovery Conference with the Court on July 10, 2025. The underlying case is a wage and hour putative class action. A prior case, however, *Shweiki v. Donor Network West*, No. MSC20-00073 settled wage and hour claims from January 10, 2016 through August 22, 2022. Mr. Swearington opted out of that settlement, thus his individual claim may proceed. He brings this putative action to address claims accruing after August 22, 2022. Initially, the claims included prior time periods, but counsel ultimately agreed that it covered only post-August 2022 claims. (Regardless of whether counsel is bound by the statement, it is a necessary concession in this case.) The glitch in this effort is that he stopped working for defendant on July 23, 2021, and therefore is not and has never been a member of the class he seeks to represent. Accordingly, he seeks classwide discovery in order to find another class representative.

Plaintiff is entitled to make an effort to find a new class representative. Plaintiff points to cases that have allowed such discovery, including *Best Buy Stores, L.P. v. Superior Court* (2006) 137 Cal.App.4th 772, 774. and *Cash Call v. Superior Court* (2008) 159 Cal.App.4th 273, 284.) In these cases, however, the named plaintiff at one time was a class member, but ceased to be one. Where the plaintiff never was a class member, it has been held that no precertification discovery is permitted. (*First American Title Ins. Co.*, (2007) 146 Cal.App.4th 1564, 1577. (Trial court opinions do not set precedent and will not be considered.) (*Bolanos v. Superior Court* (2008) 169 Cal.App.4th 744; *In re Molz* (2005) 127 Cal.App.4th 836, 845.) Plaintiff points out in reply, however, that the Shweiki settlement was not approved under August 27, 2024, over two years after the complaint in this action was filed. Thus, the pre- post-August 22 distinction did not become critical under August of 2024, rendering this case more like *Best Buy* and *Cash Call* than it is like *First American Title*.

The Court notes that in the interrogatories, the relevant time period is defined as February 21, 2018 through the time of response to the interrogatory. It is not limited to post-August 22, 2022 time period. To the extent these interrogatories relate to time period before August 22, 2022, they are not relevant to the subject to the subject matter of this action. As to the time period on or after August 22, 2022, the motion is granted. Defendant will provide full answers without objection no later than 14 days after service of notice of entry of this order

While the Court rules against defendant on the merits, its position was substantially justified. Accordingly, no sanctions will be awarded.

2. 9:00 AM CASE NUMBER: C23-00792
CASE NAME: JEFFREY R. KENNY AND LEKHINI JOSHI-KENNY, TRUSTEES VS. TIMOTHY BANCROFT
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: JEFFREY R. KENNY AND LEKHINI JOSHI-KENNY, TRUSTEES OF THE JEFFREY R. KENNY AND LEKHINI JOSHI-KENNY LIVING TRUST DATED JANUARY 9, 2021
TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings filed by cross-defendants Jeffrey R. Kenny and Lekhini Joshi-Kenny. For the reasons set forth, the motion is **granted in part and denied in part**. The motion is **granted** as to the first, second, and third causes of action, **with leave to amend**, and the motion is denied as to the fourth cause of action.

Background

This action arises out of a dispute between neighbors over disputed property at the border of their respective properties. Plaintiffs and cross-defendants Jeffrey Kenny and Lekhini Joshi-Kenny (the "Kennys" for convenience) reside at 1928 Saint Norbert Drive in Danville ("Kenny Property"), and defendants and cross-complainants Timonthy Bancroft and Andrea Bancroft (the "Bancrofts" for convenience) reside at 1927 Saint Norbert Drive ("Bancroft Property") which borders the Kenny Property. (First Am. Cross-Complaint ("FACC") ¶¶ 1, 2.) The FACC identifies the area at the border of the two properties subject to the Bancrofts' claims, and subject to the claims of the Kennys in their operative second amended complaint, as the "Disputed Area." (See FACC Introductory Paragraph, ¶¶ 5, 8.)

The Bancrofts allege that they bought the Bancroft Property in 2006. They allege that in the spring of 2007, they made an agreement with David Rebata, the then-owner of the Kenny Property, as to an agreed boundary between the two properties pursuant to which the "Bancrofts and their predecessors" constructed and maintained a "readily visible" irrigation system "extending and servicing up to where the prior owners of the Kennys' Property had installed and maintained" an irrigation system with sprinklers directed toward the Kenny Property. (FACC ¶¶ 5, 9, 10.) The Bancrofts allege there is cement landscaping, moss rocks, drip lines and plants, trees and grass in the Disputed Area "constructed, planted and installed by, and/or paid for and maintained and irrigated by" the Bancrofts for 14 years before the Kennys bought the Kenny Property. (FACC ¶ 5.) They allege the Bancrofts and the Rebatas never repudiated the agreement regarding the boundary made in 2007, and the Bancrofts and Rebatas relied on their agreement in dividing and allocating maintenance and costs associated with the Disputed Area. (FACC ¶¶ 11-17.)

Cross-complainants alleged that the Kennys purchased the Kenny Property in May 2021 and began challenging the Bancrofts' "use and occupancy" of the Disputed Area in July 2022. (FACC ¶ 8.) The Bancrofts allege in January 2023, when the Kennys knew the Bancrofts were away, the Kennys "trespassed" on the Disputed Area and removed cemented-in moss rocks and irrigation drip lines in the Disputed Area, destroying and altering evidence the Kennys knew was relevant to future litigation. (FACC ¶¶ 19-21.) The Bancrofts allege that the Kennys have also put warning tape, markers and barriers in the Disputed Area creating safety hazards. (FACC ¶ 22.)

The FACC alleges two causes of action for quiet title, one based on an agreed upon boundary and one based on prescriptive easement (1st and 2nd C/As, respectively), trespass (3rd C/A), waste (4th C/A), injunctive relief (5th C/A), abatement of a private nuisance (6th C/A), estoppel based on the agreed boundary (7th C/A), and declaratory relief (8th C/A). Cross-defendants move for judgment on the pleadings as to the first four causes of action for failure to allege facts sufficient to state a cause of action.

Legal Standards Governing Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 permits a defendant to move for judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc. §§ 438(b)(1) and 438(c)(1)(B)(ii); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 ["Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]"].) (See also *Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 ["A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in." [Citation omitted.]"].)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) The basis for judgment on the pleadings "shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438(d).) As in the case of a demurrer, the Court accepts all factual allegations of the complaint and "gives them a liberal construction." (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-16.)

Consistent with the rules for determination of a demurrer, a motion for judgment on the pleadings must fully dispose of the challenged cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.*, *supra*, 12 Cal.5th at 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) Further, "If the motion for judgment on the pleadings is granted, leave to amend must be granted unless the defect cannot be cured by amendment." (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 408.)

Procedural Note on Opposition

California Rules of Court, Rule 2.108 governs line spacing of pleadings. Only certain information, such as real property descriptions, footnotes, and quotations may be single-spaced. (Cal. R. Ct., Rule 2.108 subparts (2), (3).) The single-spaced headings in the opposition do not comply with this rule. The Court expects compliance with this rule in future filings.

Requests for Judicial Notice

In support of their motion, Cross-defendants ask the Court to take judicial notice of the grant deeds for the Kenny Property and the Bancroft Property (Kenny RJN Exhs. A and B), the FACC (Kenny RJN Exh. C), and a recorded subdivision map for Subdivision 4742 (Kenny RJN Exh. D). Cross-Complainants request the Court take judicial notice of the original and second amended complaints filed by the Kennys, the FACC filed by the Bancrofts, and the Kennys' answer to the FACC. Neither request is opposed.

Judicial notice of the grant deeds and subdivision map (Kenny RJN Exhs. A, B, and D) is appropriate as recorded documents, and the Court **grants** the request. (Evid. Code § 452(c); *Linda Vista Village San Diego Homeowners Assn., Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 184 [judicial notice of recorded documents].) The Court also **grants** the unopposed requests for judicial notice of the FACC and other pleadings filed in this action, but judicial notice does not extend to judicial notice of the truth or interpretation of the content of the pleadings to the extent reasonably disputable. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9.)

Analysis

A. Quiet Title Causes of Action (1st and 2nd C/As) – Legal Description

Under Code of Civil Procedure section 761.020 "shall be verified and shall include all of the following: (1) a description of the property that is the subject of the action. . . . In the case of real property, the description shall include both its legal description and its street address or common designation, if any." (Code Civ. Proc. § 761.020 (a).) Inclusion of a legal description of the property at issue in a quiet title cause of action is mandated by the statute, not optional. Cross-complainants cite no authority to the contrary; they cite no authority that the cases addressing notice pleading in general override a specific statutory directive for pleading a quiet title complaint.

The first and second causes of action, both alleging claims for quiet title, fail to allege any legal descriptions and therefore fail to include essential allegations required to state a quiet title cause of action under Code of Civil Procedure section 761.020. The Bancrofts characterize this requirement as "formalistic," and argue that the Kennys have sufficient notice of the Disputed Area based on allegations regarding the location of sprinklers or drip lines and landscape materials. The basis of the motion is not that the FACC is uncertain, but that the allegations fail to comply with the statutory mandate for a quiet title complaint. The motion for judgment on the pleadings as to the first and second causes of action is **granted** on this ground, **with leave to amend**.

B. Agreed Boundary (1st C/A)

"The agreed boundary doctrine constitutes a firmly established exception to the general rule that accords determinative legal effect to the description of land contained in a deed." (*Bryant v. Blevins* (1994) 9 Cal.4th 47, 54.) The California Supreme Court in *Bryant* reaffirmed "the vitality of the requirements necessary to establish the applicability of the agreed-boundary doctrine, set forth in *Ernie v. Trinity Lutheran Church* (1959) 51 Cal.2d 702." (*Id.*) The requirements of the agreed-boundary doctrine stated in *Ernie* are "that there be an uncertainty as to the true boundary line, an agreement between the coterminous owners fixing the line, and acceptance and acquiescence in the line so fixed for a period equal to the statute of limitations or under such circumstances that substantial loss would be caused by a change of its position." (*Ernie v. Trinity Lutheran Church* (1959) 51 Cal.2d 702, 707.)

The Court in *Bryant* also declined "to limit application of the agreed-boundary doctrine to instances in which existing legal records are inadequate to settle a boundary dispute," explaining that "such an inflexible rule would risk destabilizing long-standing agreements--made in good faith by coterminous property owners in order to resolve uncertainty as to the location of their common boundaries--that might, for any one of several reasons, be at variance with legal property descriptions or survey results." (*Bryant, supra*, 9 Cal.4th at 54 [emphasis added].) (*See also Ernie, supra*, 51 Cal.2d at 707-708 ["It is not required that the true location be absolutely unascertainable [citation omitted]; that an accurate survey from the calls in the deed is possible [citation omitted], or that the uncertainty should appear from the deeds [citation omitted]. The line may be founded on a mistake. [Citation omitted.]"].) Notably, the cases cited by the Kennys were generally decided on an evidentiary record, not on a demurrer or motion for judgment on the pleadings.

The Court in *Bryant* found the Court of Appeal "improperly rejected the analysis set forth in other,

well-reasoned Court of Appeal decisions that have held the doctrine is not properly applicable in cases . . . in which there is no evidence that prior owners of adjoining parcels of real property entered into an agreement to resolve a boundary dispute and where available legal records provided a reasonable basis for fixing the boundary. In the present case, because defendants, while relying upon the agreed-boundary doctrine, failed to demonstrate that an uncertainty as to the true boundary line led the prior coterminous owners to agree to fix the boundary separating the parties' respective parcels of real property at the location of the barbed wire fence, we conclude that the Court of Appeal erred in upholding the application of the agreed-boundary doctrine." (*Bryant, supra*, 9 Cal.4th at 53-54 [emphasis added].) The defendant argued that the plaintiffs did not establish that the adjoining property owners had made an agreement to accept the fence as the location of the boundary line because the property owners were uncertain of the location of the boundary. (*Id.* at 55.)

The Court held that long-term acquiescence in the location of a fence bordering the adjoining properties alone was not enough to meet the requirements of the doctrine, specifically "that there be an uncertainty as to the location of the true boundary when the fence was erected, and an agreement between the neighboring property owners to employ the location of the fence as the means of establishing the boundary. [Citation omitted.]" (*Bryant, supra*, 9 Cal.4th at 58 [also stating "when existing legal records provide a basis for fixing the boundary, there is no justification for inferring, without additional evidence, that the prior owners were uncertain as to the location of the true boundary or that they agreed to fix their common boundary at the location of a fence. [Citation omitted.]"]].)

One of the "well-reasoned" Court of Appeal decisions approved and relied on in *Bryant* is *Armitrage v. Decker* (1990) 218 Cal.App.3d 887. That case held that the agreed-boundary doctrine could not be used to "supersede recorded legal descriptions of the property where, as here, they are fully consistent" because application of the doctrine in that circumstance "would not only destroy the significance of recorded instruments but would foster litigation rather than preventing it." (*Armitrage, supra*, at 903 [emphasis added, quoted at *Bryant, supra*, 9 Cal.4th at 57].) (*See also Martin v. Van Bergen* (2012) 209 Cal.App.4th 84, 90 [no showing of uncertainty if boundary can be determined "from an accurate survey," but also finding proof of agreed boundary insufficient on other grounds].)

The type of "additional evidence" to show uncertainty regarding the boundary line is illustrated in *Ernie*. In that case, there was evidence of uncertainty because the church had commissioned a survey and then later constructed a cement pathway and church building on the disputed strip of land as to which there had been no objection for 26 years, notably structures that were not merely fences "which might in and of themselves be of uncertain, temporary or equivocal nature." (*Id.* at 708.) A subsequent survey showed a different boundary line and that the buildings and pathway encroached on the disputed strip, prompting the litigation, such that there were multiple surveys with varying property lines, and the dispute over the property line was not raised until years after the structures had been erected and the new adjoining property owner was made aware of the property line shown in the later survey. (*Id.* at 708.)

There are no allegations in the FACC that there was uncertainty regarding the true property line based on surveys or the recorded documents, including the subdivision map and deeds. The Court in *Armitrage* rejected the existence of the "uncertainty" element where available recorded legal

descriptions were all consistent regarding the boundary location. (*Armitrage, supra*, 218 Cal.App.3d at 903.) The Court in *Bryant* reversed the Court of Appeal decision relying on the adjoining property owners' long acquiescence in the fence location as the boundary because it "incorrectly dismissed the sound logic set forth in *Armitrage*." (*Bryant, supra*, 9 Cal.4th at 57.)

The Bancrofts allege that the two property owners, meeting outside their respective homes in the spring of 2007, were uncertain about the location of the boundary of their properties and made an agreement as to where the line would run in connection with each owners' landscaping. (FACC ¶¶ 9, 10.) They allege the property owners' alleged acquiescence in the location of the boundary based on the location and direction of sprinklers and reliance on the location for purposes of installing and maintaining landscaping after the agreement on the location of the boundary. (See, e.g., FACC ¶¶ 12-18.) Those facts, however, do not allege the "additional evidence" necessary to invoke the agreed-boundary doctrine under the foregoing authorities; they simply allege that the homeowners did not know where the property line was located and agreed to allocate the landscaping and maintenance between their respective properties. The Bancrofts have not alleged the additional facts that show there was uncertainty regarding the boundary line under the case law, such as based on possible conflicts in the legal descriptions in prior recorded documents, inconsistent boundary lines in prior surveys, or some other facts that support that there was uncertainty or ambiguity in the boundary location not resolvable by reviewing the recorded documents, deeds or surveys.

For these additional reasons, the motion for judgment on the pleadings as to the first cause of action is **granted, with leave to amend**.

C. Prescriptive Easement (2nd C/A)

"To establish the elements of a prescriptive easement, the claimant must prove use of the property, for the statutory period of five years, which use has been (1) open and notorious; (2) continuous and uninterrupted; (3) hostile to the true owner; and (4) under claim of right. [Citations omitted.]" (*Mehdizadeh v. Mincer* (1996) 46 Cal.App.4th 1296, 1305.) (See also *McBride v. Smith* (2018) 18 Cal.App.5th 1160, 1180.) " 'The existence of a grant [easement] does not preclude the acquisition of greater rights by prescription.' [Citations omitted.] 'Use with the owner's permission, however, is not adverse to the owner. [Citations.] To be adverse to the owner a claimant's use must give rise to a cause of action by the owner against the claimant. [Citations.]" (*McBride, supra*, 18 Cal.App.5th at 1181.)

The Kennys contend this cause of action fails because the Bancrofts cannot plead inconsistent facts, and the facts alleged to support the prescriptive easement claim are inherently inconsistent with the agreed boundary claim. The Kennys contends the Bancrofts' allegations that the property owners agreed to a boundary line conflict with the allegations that the Bancrofts' use and possession of the Disputed Area was "hostile" or "adverse" to the Kennys and their predecessor owners.

The cases support that "[w]hen a pleader is in doubt about what actually occurred or what can be established by the evidence, the modern practice allows that party to plead in the alternative and make inconsistent allegations. [Citations omitted.]" (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402 [emphasis added].) (See also *Batta v. Hunt* (2024) 106 Cal.App.5th 295, 304 [in case in which plaintiffs pled easement by express grant, implication, or prescription, stating "To accommodate these uncertainties, plaintiffs can generally plead 'alternative factual allegations relying

on alternative legal theories.' [Citation omitted.]").)

In *Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2016) 6 Cal.App.5th 1207, the plaintiffs alleged causes of action for breach of contract, which was based on an express contract, and quantum meruit as well as promissory estoppel. Though "[q]uantum meruit recovery that is contrary to an express contractual term is not allowed [Citation omitted]," the Court held the plaintiffs could plead the inconsistent counts. (*Id.* at 1224-1225.) The Court similarly acknowledged that promissory estoppel "does not apply if the promisee gave actual consideration and, therefore, a cause of action for promissory estoppel is inconsistent with a cause of action for breach of contract based on the same facts. [Citation omitted.]" (*Id.*) Nevertheless, based on the rule stated in *Mendoza, supra*, the Court held at the pleading stage where the pleader has doubts about what can be established by the evidence, the party may plead inconsistent allegations such that the plaintiffs could allege both breach of contract and promissory estoppel. (*Id.*)

Batta held that a court ultimately finding both an express and implied easement by agreement, on one hand, and a prescriptive easement, on the other, is inconsistent and required reversal. But the case also supports that the plaintiff can plead the inconsistent theories, and then at trial, the plaintiff either must make an election, or the trial court must make findings at the close of the evidence as to which of the inconsistent theories the plaintiff has proven. (*Batta, supra*, 106 Cal.App.5th at 304.)

Here, in the prescriptive easement cause of action, the Bancrofts allege this cause of action "In addition to, and as an alternative to the bases for quiet title to the Disputed Area set forth above pursuant to the agreed-upon boundary doctrine." (FACC ¶ 31 [emphasis added].) It is clear the Bancrofts are attempting to plead alternative grounds for relief. Alleging that the prior owner of the Kenny Property allowed the Bancrofts to maintain and landscape the Disputed Area based on an agreement that the Disputed Area was part of the Bancroft Property, under the agreed boundary theory, is arguably different from the prior owner granting permission for the Bancrofts to maintain and landscape the Disputed Area even though the Disputed Area was part of the Kenny Property. Based on *Batta*, *Mendoza* and *Newport Harbor Ventures*, for purposes of a motion for judgment on the pleadings and the liberal construction accorded, the FACC sufficiently alleges alternative factual theories by pleading the second cause of action as an alternative to the agreed boundary claim under the cited cases based on the pleader's uncertainty either as to what occurred or what the Bancrofts may be able to prove at trial. (*Mendoza, supra*, 140 Cal.App.4th at 1402; *Newport Harbor Ventures, supra*, 6 Cal.App.5th at 1224-1225.)

The Court therefore **denies** the motion to the extent it is based on the additional ground that the second cause of action improperly pleads inconsistent facts.

D. Trespass (3rd C/A)

The Kennys' memorandum in support of their motion asserts what the elements of trespass are and that the trespass claim fails because it is dependent on the deficient quiet title causes of action. (MPA ISO Mot. p. 10, ll. 4-17.) (*Lafferty v. Wells Fargo Bank* (2013) 213 Cal. App. 4th 545, 571-572 ["When a point is asserted without argument and authority for the proposition, 'it is deemed to be without foundation and requires no discussion by the reviewing court.'"]; *Mattco Forge, Inc. v. Arthur Young & Co.* (1997) 52 Cal. App. 4th 820, 850 ["In a page and a half, and with citation to but one case for the

general proposition the conduct was despicable, [Cross-Appellant appeals] from the granting of the directed verdict motion. This cursory treatment requires no discussion by us.".)

The memorandum cites no legal authority for these assertions, including legal authority as to the elements of trespass stated in the memorandum. Nevertheless, the Bancrofts' opposition effectively concedes that this cause of action is dependent on the sufficiency of the quiet title causes of action, which the Court has found do not allege facts sufficient to state those causes of action. (Opp, p. 15, ll. 5-12 and Errata p. 15, ll. 5-12.) Both quiet title causes of action are legally deficient for failure to include the legal descriptions required. On this basis, the motion is **granted, with leave to amend**.

E. Waste (4th C/A)

Though the Kennys' motion states they are seeking judgment on the pleadings as to the fourth cause of action for waste, their memorandum in support of the motion makes no argument and cites no legal authority in support of their motion for judgment on the pleadings as to the waste cause of action. (*Lafferty, supra*, 213 Cal. App. 4th at 571-572; *Mattco Forge, supra*, 52 Cal. App. 4th at 850.) The opposition also does not address the waste cause of action, likely because the initial memorandum makes no argument regarding the waste cause of action.

The Kennys' reply for the first time argues the waste cause of action is dependent on the quiet title causes of action and fails because those causes of action are not pled with sufficient facts, citing two CACI instructions. The Court does not consider this argument raised for the first time in the reply, as the Bancrofts have not had the opportunity to oppose the arguments. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538 [points raised for the first time in a reply brief normally not considered].) In addition, CACI Instructions are not legal authority, such that the argument in the reply is not supported. (*Evans v. Hood Corp.* (2016) 5 Cal.App.5th 1022, 1049 ["[J]ury instructions, whether published or not, are not themselves the law, and are not authority to establish legal propositions or precedent. They should not be cited as authority for legal principles . . . ,"] quoting *People v. Morales* (2001) 25 Cal.4th 34, 48, fn. 7].)

The motion for judgment on the pleadings as to the fourth cause of action for waste is therefore **denied** on these procedural grounds.

3. 9:00 AM CASE NUMBER: C23-00841
CASE NAME: ANGELITO ALVIZ VS. VIRGILIO LEGARTE
HEARING ON DEMURRER TO: CROSS COMPLAINT OF LEGARTE
FILED BY: KOOKEN, CAROLYN
TENTATIVE RULING:

Before the Court is Cross-Defendant Carolyn Kooken ("Cross-Defendant" or "Kooken")'s Demurrer. The Demurrer relates to Cross-Complainant Virgilio Legarte ("Cross-Complainant" or "Legarte")'s Cross-Complaint for (1) aiding and abetting breach of fiduciary duty and (2) tort of another.

Cross-Defendant demurs to both Cross-Complainant's causes of action on the grounds that they fail to allege facts sufficient to state causes of action against Kooken.

For the following reasons, the Demurrer is **overruled**.

Request for Judicial Notice

Cross-Defendant requests judicial notice of the Complaint in this action, as well as a complaint filed in Capital Infusion Group, Inc. v. Macrobuild, Inc., et al., Los Angeles Superior Court Case No. 23VECV00143, and a Notification of Disassociation submitted to the Contractors State License Board. The unopposed request is **granted**. (Evid. Code §§ 452, 453.)

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Brief Factual Background

The Cross-Complaint alleges that the corporation Macrobuild was formed in 2017 by Defendant and Cross-Complainant Virgilio Legarte and Plaintiff Angelito Alviz (“Alviz”). Later, Plaintiff Jay Jay Alfonso (“Alfonso”) joined as a third shareholder. Cross-Complainant handled the billing, managed the books, ran payroll, and generated business through his contacts. (XC at ¶ 5,6.)

The Cross-Complaint further alleges that Legarte personally funded the business during times of cash flow shortfall. (XC at ¶ 7.) The Cross-Complaint alleges that Cross-Defendant Carolyn Kookan is the girlfriend of shareholder Alviz. (*Id.* at ¶ 8.)

Legarte alleges that in July 2022, influenced and encouraged by Kookan, the majority shareholders, Alviz and Alfonso, wrongfully expelled him from Macrobuild, removed his access to bank accounts, and diverted \$105,265.89 into an account he could not access. Despite expelling him, Alviz and Alfonso continued to use Legarte’s services without paying him. (XC at ¶¶ 9-10.)

The Cross-Complaint further alleges that Kookan encouraged the Alviz and Alfonso to mismanage Macrobuild, to compete with it through other entities controlled by Alviz, and to stop paying Merchant Cash Advances (“MCAs”) that Macrobuild had obtained from Capital Infusion, LLC, knowing that Legarte had personally guaranteed these advances. (XC at ¶¶ 11-12, 25-29.)

Analysis

(1) aiding and abetting breach of fiduciary duty

Cross-Defendant demurs to Cross-Complainant’s claim for aiding and abetting breach of fiduciary duty on the grounds that “it does not include an underlying tort, is impermissibly conclusory, fails to plead allegations with specificity based on the fraud-type tort being alleged, and fails to allege actual knowledge of tortious conduct.” (Demurrer at 4:22-25.)

“The elements of a claim for aiding and abetting a breach of fiduciary duty are: (1) a third party’s

breach of fiduciary duties owed to plaintiff; (2) defendant's actual knowledge of that breach of fiduciary duties; (3) substantial assistance or encouragement by defendant to the third party's breach; and (4) defendant's conduct was a substantial factor in causing harm to plaintiff." (*Nasrawi v. Buck Consultants LLC* (2014) 231 Cal.App.4th 328, 343 [cleaned up].)

"There are two different theories pursuant to which a person may be liable for aiding and abetting a breach of fiduciary duty. One theory, like conspiracy to breach a fiduciary duty, requires that the aider and abettor owe a fiduciary duty to the victim and requires only that the aider and abettor provide substantial assistance to the person breaching his or her fiduciary duty The second theory for imposing liability for aiding and abetting a breach of fiduciary duty arises when the aider and abettor commits an independent tort. This occurs when the aider and abettor makes a conscious decision to participate in tortious activity for the purpose of assisting another in performing a wrongful act." (*American Master Lease LLC v. Idanta Partners, Ltd.* (2014) 225 Cal.App.4th 1451, 1477 [cleaned up].)

As to the first theory, Cross-Complainant has not alleged that Cross-Defendant Kookan owed a fiduciary duty to Legarte.

As to the second theory, Cross-Complainant must allege that Kookan "had actual knowledge of the specific primary wrong the [Cross-Defendant] substantially assisted." (*Casey v. U.S. Bank Nat. Assn.* (2005) 127 Cal.App.4th 1138, 1145.) Here, the Cross-Complaint alleges that Kookan "had actual knowledge that Alviz and Alfonso were the majority shareholders in Macrobuild and owed fiduciary duties to GIL" that Kookan "actively encouraged the breach of those fiduciary duties ... provided substantial assistance and encouragement to Alviz and Alfonso in their wrongful decision to expel GIL from Macrobuild and convert Macrobuild funds for their own use." (XC at ¶ 16.)

Cross-Defendant also argues that merely alleging Legarte's "expulsion" from Macrobuild is insufficient to allege breach of fiduciary duty on the part of Alviz and Alfonso. (Demurrer at 6:11-13.) In opposition, Cross-Complainant notes that the Cross-Complaint also alleges that in addition to expelling him from Macrobuild, Alviz and Alfonso diverted funds, misappropriated opportunities, and failed to pay him. (See XC at ¶¶ 9-12.)

Cross-Complaint has alleged facts sufficient to state a cause of action for aiding and abetting breach of fiduciary duty. The Demurrer to this cause of action is **overruled**.

(2) tort of another

Cross-Defendant demurs to Cross-Complainant's cause of action tort of another on the grounds that "tort of another" is not a standalone cause of action and the Cross-Complaint fails to allege any actionable tort committed by Kookan.

"The tort of another doctrine holds that a person who through the tort of another has been required to act in the protection of his interests by bringing or defending an action against a third person is entitled to recover compensation for the reasonably necessary loss of time, attorney's fees, and other expenditures thereby suffered or incurred." (*Mega RV Corp. v. HWH Corp.* (2014) 225 Cal. App. 4th 1318, 1337.) Because the doctrine applies to economic damages suffered because of an alleged tort, "nearly all of the cases which have applied the [tort of another] doctrine involve a clear violation of a traditional tort duty between the tortfeasor who is required to pay the attorney fees and the person

seeking compensation for those fees.” (*Id.* at 1339 [internal quotation marks omitted].) In other words, if as a result of a tort the victim must pay an attorney to sue someone other than the tortfeasor, the cost of that action is part of the injury and can be part of the damages award for the tort claim.

Here, the Cross-Complaint alleges that Kookan “encouraged Alviz and Alfonso not to repay Merchant Cash Advances that GIL had taken out on behalf of the business” and that “[a]s a result, the lender, Capital Infusion, LLC, initiated a lawsuit in January 2023 against GIL, Macrobuild, and Alfonso, seeking payment for the unpaid balance, which GIL had to spend money defending.” (XC at ¶ 12.) Cross-Complainant argues in opposition to the demurrer that the Cross-Complaint alleges the elements of the tort intentional interference with contractual relations and support his cause of action for tort of another.

“The elements which a plaintiff must plead to state the cause of action for intentional interference with contractual relations are (1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.” (*Pac. Gas & Elec. Co. v. Bear Stearns & Co.* (1990) 50 Cal. 3d 1118, 1126.) The Cross-Complaint alleges that Kookan “stopped repayment of the Merchant Cash Advances that GIL had taken out on behalf of the business and personally guaranteed” (XC at ¶ 25); that “[a]s a direct result of the stopping repayment, a collection action was filed against GIL by Capital Infusion (Case No. 23VECV00143), which he was forced to defend against and ultimately settle.” (XC at ¶ 26.)

Cross-Complainant has sufficiently pled an underlying tort which caused him to incur damages. Cross-Defendant has not cited any authority, and the Court is not aware of any, which also requires Cross-Complainant to separately plead the tort which he relies on for his tort of another claim.

The Demurrer to this cause of action is **overruled**.

4. 9:00 AM CASE NUMBER: C23-00841

CASE NAME: ANGELITO ALVIZ VS. VIRGILIO LEGARTE

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS, SET 1
FILED BY: ALVIZ, ANGELITO**

TENTATIVE RULING:

Continued to February 26, 2026, 9:00 a.m. by stipulation and order entered December 5, 225

5. 9:00 AM CASE NUMBER: C24-00016

CASE NAME: NICHON ROBERSON VS. BL HOMES, INC

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR PLTF ROSALYN ENFIELD
FILED BY:**

TENTATIVE RULING:

Denied, without prejudice. Fails to comply with CRC 3.1362(c), which requires that counsel's declaration “state in general terms and without compromising the confidentiality of the attorney-client relationship” why a motion is necessary. If counsel notifies the Court that they wish to appear, they may appear and request a continuance to submit a supplemental declaration.

6. 9:00 AM CASE NUMBER: C24-00016
CASE NAME: NICHON ROBERSON VS. BL HOMES, INC
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR PETER ROBERSON
FILED BY:

TENTATIVE RULING:

Denied, without prejudice. Fails to comply with CRC 3.1362(c), which requires that counsel's declaration "state in general terms and without compromising the confidentiality of the attorney-client relationship" why a motion is necessary. If counsel notifies the Court that they wish to appear, they may appear and request a continuance to submit a supplemental declaration.

7. 9:00 AM CASE NUMBER: C24-00637
CASE NAME: AARON COHOON VS. MICHAEL SOARES
*HEARING ON MOTION IN RE: OLD REPUBLIC SURETY COMPANYS (1) MOTION TO DEPOSIT BOND FUNDS WITH COURT; (2) FOR EXONERATION OF BOND AND DISMISSAL OF OLD REPUBLIC SURETY COMPANY; (3) FOR AWARD OF ATTORNEYS FEES (MOTIONS)
FILED BY: OLD REPUBLIC SURETY COMPANY

TENTATIVE RULING:

Withdrawn by moving party, December 9, 2025.

8. 9:00 AM CASE NUMBER: C24-02383
CASE NAME: CARISSIA ELKINS VS. FOOD 4 LESS OF CALIFORNIA, INC
*HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL FOR PLTF
FILED BY: ELKINS, CARISSIA

TENTATIVE RULING:

The motion is granted. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

9. 9:00 AM CASE NUMBER: C24-02642
CASE NAME: CRUZ SERRANO VS. KOHANA COFFEE, LLC
*HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:

Plaintiffs Cruz De Leon Serrano and Graciela Rodriguez move for final approval of their class action and PAGA settlements with defendant Kohana Coffee LLC.

A. Background and Settlement Terms

The original complaint was filed by plaintiffs on October 1, 2024, raising class action claims and PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation.

The settlement would create a gross settlement fund of \$130,000. The class representative payment to plaintiff would be up to \$7,500 for each plaintiff (\$15,000 total). Attorney's fees would be

\$43,333.33 (one-third of the settlement). Litigation costs would not exceed \$6,500 (\$5,884.23 actually are sought). The settlement administrator's costs would be \$6,500. PAGA penalties would be \$20,000. Because the LWDA notices in question were filed after June 19, 2024, the employees would receive a 35% share of PAGA penalties, or \$7,000. (Labor Code §2699(m), (v)(1).) The net amount paid directly to the class members would be about \$55,667. The fund is non-reversionary. Based on the estimated class size of 128, the average net payment for each class member/aggrieved employee is approximately \$434.

The proposed settlement would certify a class of all former non-exempt employees employed by Defendants during the class period. (The facility has closed, so there are no current employees in the class.)

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and would be tendered to the State Controller's unclaimed property fund.

Since preliminary approval, notice has been given to the class. 123 notice packages were mailed. Only 4 notices remain undeliverable. No objections have been received. No requests for exclusion have been received.

The settlement contains release language (See Par. 5.2.) covering "all claims that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint[.]" Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal written discovery was undertaken. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA

concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount (\$43,333.33) as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Counsel have calculated a lodestar of \$56,355, based on 86.70 hours by attorney Maralle Messrelian at \$650 per hour. This resulted in an imputed multiplier of 0.769. No adjustment is necessary. The requested attorney’s fees are reasonable and are approved.

Litigation costs of \$5,884.23 are reasonable and are approved.

Settlement administration costs of \$6,500 are reasonable and are approved.

The requested representative payment of \$7,500 for each of the two plaintiffs is reviewed now, under the criteria for evaluation of representative payment requests are discussed in *Clark v.*

American Residential Services LLC (2009) 175 Cal.App.4th 785, 804-807. Mr. Serrano attests that he has given a general release of claims, but identifies no additional claims of value that he had. He was actively involved in the case and estimates that he spent at least 18 hours of time on it. He also is concerned that his role in this case could affect his future employment prospects. Ms. Rodriguez submits a similar declaration, estimating that she spent 16.5 hours on the case. All things considered, the representative payments are approved in the amount of \$7,500 each.

D. Conclusion

The Court finds that the proposed settlement is fair, reasonable, and adequate, and approves it. **The motion is granted.**

Counsel are directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, which shall be set in consultation with the Department Clerk. **Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.**

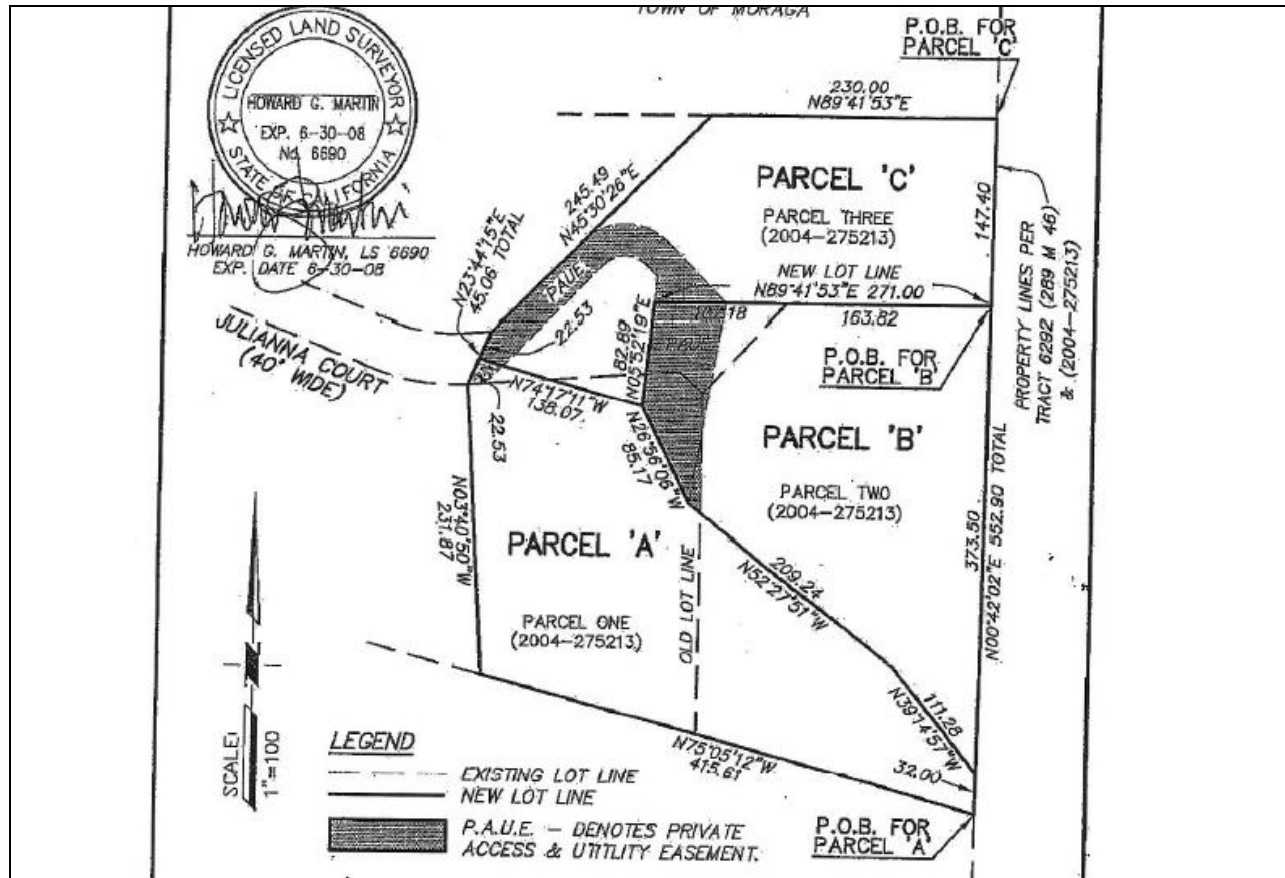
10. 9:00 AM CASE NUMBER: C24-02677
CASE NAME: AMERICAN MLB FEDERAL INVESTMENTS VS. SHERI KELLEHER
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: KELLEHER, SHERI
TENTATIVE RULING:

The demurrer, filed by defendants Sheri Kelleher and Paul Crinks, is **overruled**, as discussed below. **Defendants shall file their answer on or before January 5, 2026.**

I. Factual Background

The complaint here involves quiet title claims by plaintiffs to an easement over the properties of demurring defendants, whose properties are within the boundaries of defendant Sanders Ranch HOA. Plaintiffs' property is "immediately adjacent to, and east of the Sanders Ranch subdivision, in the town of Moraga, California." (Complaint, ¶14.)

Plaintiffs' property was previously held in common ownership with the properties of moving defendants and other properties in the HOA. At one point, in 2006, then-owner of plaintiff's property, "Roberts," also owned parcels A, B, and C, depicted in the drawing below (from Exhibit F to Complaint).



Roberts conveyed Parcels B and C, but reserved rights to access plaintiffs' property, which is not depicted in the above drawing and is east of the depicted area. At the time of the conveyance, in 2006, Roberts and the new owners of Parcel B and Parcel C entered into an express easement agreement ("driveway agreement") which provided for Roberts' access over Parcels B and C to his own Parcel A, but also to his other property beyond the depicted area, which he had not yet purchased, but which parties anticipated Roberts would purchase. (Complaint, Ex. F.)

Specifically, the language in the driveway agreement states, "As Roberts is expected to construct on single-family residential dwelling on the property located to the east of the Roberts property, the Roberts Driveway easement granted herein is for the purpose of providing ingress and egress rights and utility service for the benefit of property that contains one single-family residential dwelling and for such uses as are associated or compatible with Property containing one single-family residential dwelling."

Plaintiffs allege this confers the status of a dominant tenement on their property, which Roberts purchased in 2012 from East Bay MUD (see Complaint, Ex. G) and plaintiffs purchased from Roberts in March of 2024. (Complaint, ¶123, Ex. G.) Plaintiffs filed the complaint on October 7, 2024, alleging four causes of action with the following titles: (1) Quiet Title to Easement by Necessity, (2) Declaratory Relief – Existence of Easement by Necessity, (3) Quiet Title – Prescriptive Easement, and (4) Quiet Title –Easement. Upon review, the fourth cause of action is based on a theory of an express deeded easement pursuant to the Driveway Agreement.

After meeting and conferring with plaintiffs, as required by Code of Civil Procedure, section 430.41, defendants filed this demurrer pursuant to Code of Civil Procedure section 430.10, subdivision (e), targeting the fourth cause of action. (See Declaration of Karl J.F. Runft in Support of Demurrer.) Plaintiffs oppose the demurrer.

II. Evidentiary Matters

In support of the demurrer, defendants request judicial notice of three documents: (1) a purportedly recorded 2018 deed of “Parcel A” to Ewert, (2) a “Termination of Common Driveway Construction and Maintenance Agreement,” purportedly recorded in 2011, and (3) a purported 2021 grant deed of Parcels A, B, and C from Dougals and Julie Ewert as trustees to defendants.

Plaintiffs object. They argue that the documents are not authenticated or self-authenticating. They also argue that the Court cannot take notice of the legal effects of a document, even if the fact that the document exists is noticeable.

“Judicial notice is the recognition and acceptance by the court, for use by the trier of fact or by the court, of the existence of a matter of law or fact that is relevant to an issue in the action without requiring formal proof of the matter.” (*Poseidon Development, Inc. v. Woodland Lane Estates, LLC* (2007) 152 Cal.App.4th 1106, 1117, internal citations omitted.) A court may take judicial notice of something that cannot reasonably be controverted, even if it negates an express allegation of the pleading. (*Ibid.*) This includes recorded deeds. (*Ibid.*)

Setting aside the technical failings of the documents, which plaintiffs point out are not certified copies or otherwise authenticated, the documents do not determine the outcome of the claim for an express easement.

Here, the facts sought to be established by judicial notice involve whether parcels A, B, and C were ever under common ownership and, if so, whether the owners of these parcels agreed to terminate a driveway agreement that affects these three parcels. These facts are not critical to the issue before the Court, which is whether *plaintiffs’* property is, in fact, a dominant tenement described in the driveway agreement. If plaintiffs’ property is such dominant tenement, plaintiffs’ consent, or that of their predecessors, would be required to terminate the rights associated with the driveway agreement.

The documents provided by defendants do not address that issue and are therefore irrelevant. Accordingly, in addition to the technical issues identified by the plaintiffs, the request is **denied**.

III. Demurrer Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.)

IV. Discussion - Fourth Cause of Action

Defendants demur to the fourth cause of action on the basis that the doctrine of merger, as well as a recorded “Termination of Common Driveway Construction and Maintenance Agreement,” which defendants contend terminated the easement over which plaintiffs seek rights here.

Plaintiffs argue that, because the termination document was only executed by the owners of

the servient tenements, there was no termination of the driveway agreement with respect to their property. Further, because there was no common ownership of plaintiff's property as well as the servient properties, the doctrine of "merger" does not apply.

Defendants' reply contends that the driveway agreement's terms are unambiguous and should be construed to deny plaintiffs' property any status as a dominant tenement. The question is not so unambiguous as defendants suggest. The driveway agreement specifically permits access to what appears to be the very property plaintiffs now own. The correct interpretation of the agreement is an evidentiary determination not appropriate for determination on demurrer, as highlighted by defendants' argument about the subjective intention of Roberts in making the driveway agreement. (Reply, 3:8-11 [Roberts "entered into the Driveway Agreement with the belief that Roberts would maintain ownership over Parcel A"].)

11. 9:00 AM CASE NUMBER: C24-03268

CASE NAME: GILBERT BIGGS VS. CALIFORNIA GRAND CASINO

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS**

FILED BY: CALIFORNIA GRAND CASINO

TENTATIVE RULING:

Defendant brings three motions to compel further responses to discovery: (1) concerning a Request for Production of Documents; (2) concerning Special Interrogatories; and (3) concerning Form Interrogatories. In the underlying action, plaintiff alleges that he was injured on defendant's property. The matter originally was set to be heard on October 30, 2025, but was continued to this date on the Court's own motion.

Defendant served the First Set of Requests for Production of Documents on February 25, 2025.

Defendant served Special Interrogatories on plaintiff on February 25, 2025. Defendant served Form Interrogatories on March 28, 2025. Defendant granted a short extension, and plaintiff responded to all three discovery requests on May 1, 2025. All three responses were unverified.

Defendant sent a meet and confer letter addressing all three responses on May 13, 2025, and counsel conferred by telephone on May 15, 2025. There is some dispute as to whether plaintiff agreed to supplement by May 30, 2025, or at an unspecified date when more information was available. Plaintiff's counsel attests that he "advised defense counsel that Plaintiff would provide supplemental responses once the remaining medical records were received from Plaintiff's medical providers." (Balogh Decl, par. 4.) Defense counsel's email message of May 16, 2025, states that plaintiff "agreed to supplement your client's discovery responses within two weeks, by Friday, May 30, 2025." The message further asked that counsel to "please let me know if I've misstated anything." Nothing in the record indicates that counsel did so. Accordingly, the Court concludes that defense counsel engaged in a satisfactory meet and confer process, and that plaintiff's counsel had agreed to supplement the responses by May 30, 2025.

An unverified response is tantamount to no response at all. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.)

Defendant filed this motion on June 30, 2025, and it was set for hearing on October 30, 2025. Plaintiff served verified supplemental responses to the Form Interrogatories, Special Interrogatories, and Requests for Production of Documents on October 17, 2025, the same day that he filed his opposition to the motions to compel further responses. Plaintiff's opposition includes Separate Statements addressing the merits of the discovery issues, but relying largely on the supplemental responses.

The net effect of the supplemental responses, and their timing, is that defendant was put to the time and expense of filing motions to compel in order to obtain previously promised supplemental responses. Defendant's only opportunity to respond was in the time available for the reply, which is not adequate and leaves no opportunity to meet and confer concerning the adequacy of the supplemental responses. The plaintiff, having initially served unverified responses, is ordered to serve supplemental responses without objection.

Defendant seeks sanctions. As to the Form Interrogatories, Defendant seeks sanctions of \$1,960, based on 7.6 hours at \$250 per hour, plus a \$60 filing fee. As to the special interrogatories, Defendant seeks sanctions of \$2,235, based on 8.7 hours at \$250 per hour, plus a \$60 filing fee. As to the requests for production of documents, defendant seeks \$1,935, based on 7.5 hours at \$250 per hour, plus a \$60 filing fee.

As to the request for sanctions, the Court is mindful that plaintiff has supplemented its responses. Rule of Court 3.1348(a) specifically addresses this situation, providing: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." Failure to oppose or service of a supplemental response "shall not be deemed an admission that the motion was proper or that sanction should be awarded." (CRC 3.1348(b).)

The Code of Civil Procedure requires sanctions, under specified circumstances, against a party "who unsuccessfully makes or opposes a motion to compel" further responses to interrogatories or requests for production of documents, unless the party subject to the sanction acted with "substantial justification or that other circumstances make the imposition of the sanction unjust." (C.C.P. §§ 2030.300(d), 2031.300(c).) Under Code of Civil Procedure section 2023.030(a), the Court also has *separate* authority to impose a monetary sanction against a party engaging "in the misuse of the discovery process," which is defined to include "making, without substantial justification, an unmeritorious objection to discovery[.]" (CCP § 2023.010(e).)

The evident purpose of the provisions of the statute and Rules of Court is to assure that a party cannot unjustifiably refuse to respond to discovery, put the propounding party to the time and expense of filing a motion to compel, and then avoid any accountability by subsequently supplementing the discovery responses when the opposition to the motion is due. In this instance, plaintiff served unverified responses, promised to supplement by a specific date, and failed to supplement until a motion to compel was filed.

Monetary sanctions will be awarded. The hourly rate and hours spent are reasonable, and sanctions

will be awarded in the amounts requested, i.e., \$1,960, \$2,235, and \$1,935. Sanctions are awarded jointly and severally against counsel and the plaintiff, and are to be paid within 30 days of notice of entry of the order.

12. 9:00 AM CASE NUMBER: C24-03268
CASE NAME: GILBERT BIGGS VS. CALIFORNIA GRAND CASINO
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, DECLARATION OF ANAHIT TER-MAMBREYAN**
FILED BY: CALIFORNIA GRAND CASINO
TENTATIVE RULING:
See line 11.

13. 9:00 AM CASE NUMBER: C24-03268
CASE NAME: GILBERT BIGGS VS. CALIFORNIA GRAND CASINO
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S FURTHER RESPONSES TO FORM INTERROGATORIES, DECLARATION OF ANAHIT TER-MAMBREYAN**
FILED BY: CALIFORNIA GRAND CASINO
TENTATIVE RULING:
See line 11.

14. 9:00 AM CASE NUMBER: C25-00018
CASE NAME: MIKE ANDRADE VS. WALNUT CREEK FORD, INC.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: WALNUT CREEK FORD, INC.
TENTATIVE RULING:
Plaintiff has filed a statement of non-opposition. Defendant's motion to compel arbitration of individual PAGA claims and stay other proceedings in the related case between the same parties (No. C24-01999) is **granted**.

15. 9:00 AM CASE NUMBER: MSC19-02043
CASE NAME: GARAVENTA VS AZARI
***HEARING ON MOTION IN RE: TO DIMISS**
FILED BY: AGL ENTERPRISES, LLC A CALIF LIMITED LIABILITY COMPANY
TENTATIVE RULING:

Before the Court is a motion by defendant AGL Enterprises, LLC to dismiss the first amended complaint against it. The Court also has before it a motion by defendant Mehrzad Azari to dismiss the second, third, and fourth causes of action of the first amended complaint (see Line 17). The Court addresses both motions in this ruling. For the reasons set forth, the motions to dismiss are **granted** as stated below.

Background

Plaintiff Silvio Garaventa filed a complaint initiating this action in 2019. The action arises out of business disputes between Garaventa and defendant Mehrzad Azari. The operative first amended complaint filed November 4, 2019 alleges that at that time, Garaventa and Azari each owned 50 percent of defendant Pine Hollow Enterprises, a corporation, and they were also each directors of

Pine Hollow. (FAC ¶¶ 1, 2.) Garaventa alleges he and Azari also each held 50 percent membership interests in the limited liability company defendant AGL Enterprises, LLC. (FAC ¶¶ 1, 2, 4.)

Pine Hollow operates a gas station, convenience store and car wash on property owned by AGL. (FAC ¶ 9.) Pine Hollow leased the property from AGL. (FAC ¶ 9.) Pine Hollow had an agreement with CMA, an entity owned by Azari, to manage Pine Hollow for a management fee with a bonus based on the net profits of Pine Hollow. (FAC ¶¶ 4, 13.)

Disputes arose between Garaventa and Azari over business decisions in the management of Pine Hollow and AGL, and in 2018, a third party director, defendant Kent Parr, was appointed to a one-year term as a director of Pine Hollow and a manager of AGL. (FAC ¶¶ 15-21.) Garaventa alleges Parr acted in concert with Azari and approved a large increase in CMA's compensation for managing Pine Hollow over Garaventa's objection. (FAC ¶¶ 20, 21.) (Parr was subsequently dismissed from the action without prejudice on November 12, 2021.)

AGL has not offered or obtained a new lease for the property from Pine Hollow or an extension of the existing lease. (FAC ¶ 28.) Plaintiff alleges breaches of the AGL operating agreement and breaches of fiduciary duty by Azari in the management of AGL and Pine Hollow, and Garaventa seeks an involuntary judicial dissolution of both entities. (FAC 1st-5th C/As.)

In the operative first amended complaint filed on November 4, 2019 ("FAC"), Garaventa alleges seven causes of action: (1) breach of fiduciary duty against Azari related to his management of Pine Hollow (1st C/A); (2) breach of fiduciary duty against Azari related to management of AGL (2nd C/A); (3) breach of contract, specifically the AGL operating agreement, against Azari, including Azari withholding distributions (3rd C/A); (4) judicial dissolution of AGL under California Corporations Code section 17707.3 against Azari, Parr, and AGL (4th C/A); (5) judicial dissolution of Pine Hollow under Corporations Code section 1800 against Azari, Parr and Pine Hollow (5th C/A); (6) appointment of a receiver over Pine Hollow and AGL (though the applicable defendants are not stated) (6th C/A); and (7) declaratory relief concerning increases in compensation to CMA by Pine Hollow, with no specific defendants identified (7th C/A).

In March 2020, Azari moved for an order compelling arbitration as to claims related to AGL. (3/13/2020 Mot. and MPA ISO Mot. to Compel Arb.) On July 16, 2020, the Court issued an order compelling arbitration of "all claims against defendant Azari related to nominal defendant" AGL pursuant to the arbitration provision of the operating agreement. (7/16/2020 Min. Order.) The claims proceeded to arbitration before the Honorable Brian C. Walsh (Ret.), who issued the Arbitrator's Final Award dated January 22, 2024 ("Final Award"). (Azari Decl. ISO MTD by AGL Exh. A; Azari Decl. ISO MTD by Azari Exh. A.)

Legal Standards for Dismissal under Code of Civil Procedure Section 581

Defendants make their motions to dismiss under Code of Civil Procedure section 581. Code of Civil Procedure section 581 contains a long list of circumstances under which the Court may dismiss an action, with or without prejudice as the statute provides. The list is explicitly nonexclusive: "The provisions of this section shall not be deemed to be an exclusive enumeration of the court's power to dismiss an action or dismiss a complaint as to a defendant." (Code Civ. Proc. § 581(m).)

A motion to dismiss may be granted where declarations in support of the motion show the action is

barred by *res judicata*. (*Best v. Fitzgerald* (1947) 81 Cal.App.2d 965, 967.) (*See also Planning & Conservation League v. Castaic Lake Water Agency* (2009) 180 Cal.App.4th 210, 232 [when court cannot determine *res judicata* bars a complaint on a demurrer with a limited record, then "the party asserting the defense may attempt to establish [the facts] by a motion to dismiss supported by affidavits or in a trial [citations omitted]"].)

AGL also cites the Court's inherent authority to dismiss a complaint where the action is frivolous, a sham or fictitious if the record discloses there is no relief that can be granted to the plaintiff. (*Byer v. Arguello* (1950) 96 Cal.App.2d 92, 93; *Huang v. Hanks* (2018) 23 Cal.App.5th 179, 181-182.) This authority is limited. (*See Estrada v. Royalty Carpet Mills, Inc.* (2024) 15 Cal.5th 582, 601, 602.)

Analysis

A. The Motions and Opposition

Based on the Final Award, Azari moves to dismiss the second, third, and fourth causes of action against him, claims directed to him in his role with AGL, and AGL moves to dismiss all claims of the FAC alleged against AGL. Azari provides the Final Award, which required AGL to pay Garaventa \$1,545,000 for the value of his interest in AGL. (Azari Decl. ISO MTD by AGL ¶ 2.) Azari was ordered to execute a promissory note (the "AGL Buyout Note") and security agreement in favor of Garaventa in that principal amount. After Garaventa notified Azari he would not challenge the Final Award, Azari began making payments to Garaventa pursuant to the Final Award and the AGL Buyout Note on February 1, 2024 and has made all subsequent payments due. (Azari Decl. ISO MTD by AGL ¶¶ 2-4; Azari Decl. ISO MTD by Azari ¶¶ 5, 6.) Azari presents evidence that Garaventa through his counsel has acknowledged that based on the Final Award and the execution of and commencement of payments under the AGL Buyout Note, Azari is now the 100% owner of AGL. (Azari Decl. ISO MTD by AGL ¶ 5 and Exhs. C and D; Azari Decl. ISO MTD by Azari ¶ 4 and Exh. C.)

In response to the motion, Plaintiff has filed only a brief declaration by his counsel Richard Bowles which indicates in the title it is filed "in support of combined opposition" to the Azari and AGL motions to dismiss. Plaintiff has not filed any opposition memorandum with legal authorities in response to either motion.

The Bowles Declaration is largely argument. The declaration does not dispute that the Final Award was issued, that Garaventa did not challenge the Final Award, that Azari executed the AGL Buyout Note and security agreement and has made the payments required thereunder to date, and that AGL is now owned solely by Azari. Garaventa's only argument in opposition to the dismissal motions is that there is an outstanding dispute between Garaventa and Azari related to AGL regarding a debt owed by AGL to Pine Hollow reflected in a \$1 million promissory note dated December 7, 2022 executed by Azari on behalf of AGL in favor of Pine Hollow (the "AGL-Pine Hollow Note").

B. Dismissal Based on the Final Award

Though the information regarding the AGL-Pine Hollow Note is arguably not presented with admissible evidence, the existence of the AGL-Pine Hollow Note and the fact the principal balance of that note remains outstanding does not appear to be in dispute. The sole question before the Court then is whether the existence of the unsatisfied AGL-Pine Hollow Note prevents the Court from dismissing the claims alleged against Azari and AGL as requested in the motions. The Court holds it

does not.

1. Legal Effect of Unconfirmed Arbitration Award

The absence of any legal authority contrary to the authority cited in support of the motions supports that Plaintiff concedes the authorities cited by defendants reflect the applicable law. In that regard, AGL cites Code of Civil Procedure section 1287.6 regarding the legal effect of an arbitration award. That statute provides: "An award that has not been confirmed or vacated has the same force and effect as a contract in writing between the parties to the arbitration." (Code Civ. Proc. § 1287.6.) Case law cited by AGL supports that an arbitration award, though unconfirmed, is given *res judicata* or claim preclusive effect and treated as "the equivalent to a final judgment." (*Bucur v. Ahmad* (2016) 244 Cal.App.4th 175, 185-186.) (See also *Thibodeau v. Crum* (1992) 4 Cal.App.4th 749, 759 and *Trollope v. Jeffries* (1976) 55 Cal.App.3d 816, 822-823, both cited and relied on by the Court in *Bucur* for the proposition stated as to the *res judicata* effect of an unconfirmed award.)

Garaventa does not contest that the finding in the Final Award and the argument in defendants' motions that he filed a counterclaim in the arbitration that asserted the same claims against Azari in the second, third, and fourth causes of action and against AGL that are alleged in the FAC. (Azari Decl. ISO MTD by AGL Exh. A [Final Award p. 2, para. 5 and p. 19 ["Garaventa's Counterclaim (which is the same as his Complaint) alleges the following causes of action: breach of fiduciary duty owed by Azari to Garaventa and AGL and its members (Corporations Code § 17704.09); breach of AGL Operating Agreement by Azari; (4) judicial dissolution of AGL pursuant to Corporations Code 17707.03; appointment of a receiver; and declaratory relief. Counterclaim, Ex. 1."].) Garaventa does not dispute that he elected not to contest or seek to vacate or modify the Final Award. Instead, since February 2024, he has accepted the benefits of the Final Award through the Azari note and security agreement granted to Garaventa to buy out his interest in AGL. The Bowles Declaration does not raise a factual or legal dispute that the Final Award, therefore, resolved the claims against Azari and AGL that the defendants seek to dismiss.

2. Relationship of the Final Award to the AGL-Pine Hollow Note

The Final Award determined a net asset value of AGL as of October 2019 and then calculated the buyout price under the AGL operating agreement for Garaventa's 50% interest in AGL. (Azari Decl. Exh. A [Final Award The Arbitrator made a finding in the Final Award that AGL owed two long term liabilities to Chase Bank secured by deeds of trust on its real property, with the loans totaling approximately \$2.9 million as of October 2019. (Azari Exh. A [Final Award p. 15, 16, 28-29].) The Arbitrator also found that the Chase Bank loans were subsequently paid off through a personal loan made by Azari to AGL and a \$1 million loan to AGL from Pine Hollow, the loan reflected in the AGL-Pine Hollow Note. (Azari Exh. A [Final Award p. 15].) Essentially, AGL substituted the creditors holding the Chase Bank debt used in determining the net asset value of AGL and the value of Garaventa's interest that Azari had to pay to buy out Garaventa's interest, which Azari is now paying through the AGL Buyout Note.

The effect of the Final Award on the AGL-Pine Hollow Note from the perspective of AGL and Garaventa is that AGL had a \$1 million liability, 50% of which was owed indirectly by Garaventa based on his membership interest in AGL. Garaventa has been relieved of his 50% share of that liability

through the Final Award and the purchase of his interest in AGL through the AGL Buyout Note. He admittedly is no longer a member of AGL, and he no longer holds an interest in AGL whose value would be diminished as a result of AGL's liability for the AGL-Pine Hollow Note. The AGL-Pine Hollow Note is a debt owed by AGL, an entity that is now, after the Final Award, wholly owned by Azari.

Pine Hollow's right to demand repayment and collect the outstanding balance of the AGL-Pine Hollow Note is an asset of Pine Hollow. Garaventa has an indirect 50% interest in the net amounts collected on the AGL-Pine Hollow Note as a 50% shareholder of Pine Hollow. Garaventa retains his claim to his share of the proceeds of the AGL-Pine Hollow Note through his shareholder interest in Pine Hollow and his causes of action against Pine Hollow in this action which were not resolved by the Final Award. Those claims may be addressed at least in part through the proposed wind up of Pine Hollow by the Receiver. The tentative ruling on the Receiver's wind up motion is issued concurrently at Line 16.

3. Mootness/Lack of Standing

"An issue becomes moot when some event has occurred which 'deprive[s] the controversy of its life.' [Citations omitted.]" (*Giraldo v. Department of Corrections & Rehabilitation* (2008) 168 Cal. App. 4th 231, 257.) The doctrine is based on the policy that courts should not normally render advisory opinions and will only decide "justiciable" controversies. (*Id.*) (See also *Center for Local Government Accountability v. City of San Diego* (2016) 247 Cal.App.4th 1146, 1157 ["The voluntary cessation of allegedly wrongful conduct destroys the justiciability of a controversy and renders an action moot unless there is a reasonable expectation the allegedly wrongful conduct will be repeated. [Citations omitted.]"]].)

The Final Award explicitly addresses and resolves the breach of fiduciary duty and breach of the AGL operating agreement causes of action (2nd and 3rd C/As) against Azari related to AGL, in which AGL is a nominal defendant, as well as claims by Azari and AGL against Garaventa for Garaventa's alleged breach of fiduciary duty. (Azari Decl. ISO MTD by Azari Exh. A [Final Award pp. 32-36].) Further, the claim against Azari and AGL for judicial dissolution of AGL (4th C/A), for appointment of a receiver over AGL, and for declaratory relief have also been resolved by Azari's buyout of Garaventa's interest. The Bowles Declaration cites no legal authority or factual basis on which Garaventa can continue to maintain his claim for judicial dissolution or appointment of a receiver over AGL when he is no longer a member and has no ownership or other interest in AGL. The AGL-Pine Hollow Note is held by Pine Hollow as the payee, not Garaventa; Garaventa is not a creditor of AGL based on that note. Similarly, as a result of the buyout, there is no longer a contractual agreement or other relationship between Garaventa and Azari related to AGL or between Garaventa and AGL for which declaratory relief could be granted. (Code Civ. Proc. § 1060.)

Conclusion and Ruling

The Bowles Declaration presents no evidence or legal authority that Garaventa's claims against AGL and against Azari related to AGL asserted in the FAC were not fully and finally resolved in the Final Award and through the AGL Buyout Note issued and accepted by Garaventa pursuant to the Final Award. The opposition does not demonstrate that there are any unresolved issues remaining in the FAC's causes of action against AGL or against Azari related to AGL in the FAC. **The motions to dismiss are granted. The second, third, and fourth causes of action against Azari shall be dismissed, and AGL**

shall be dismissed from the action.

16. 9:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

*HEARING ON MOTION IN RE: ORDER AUTHORIZING RECEIVER TO WIND UP BUSINESS

FILED BY: DONELL, STEPHEN

TENTATIVE RULING:

Parties to Appear to Address the Issues Stated Below

Before the Court is a second amended motion by the State Court Receiver Stephen Donell for an order authorizing the Receiver to wind up the business of defendant Pine Hollow Enterprises. For the reasons set forth, the motion is **granted, subject to** the terms and conditions set forth below.

Background

For the general case background, see Line 15 above.

As relevant to the Receiver's motion, defendant Mehrzad Azari made an *ex parte* application for appointment of a receiver over Pine Hollow on June 4, 2025. After hearings on June 4, 2025 and June 13, 2025, Azari's *ex parte* application was granted, and Stephen Donell was appointed as Receiver "with respect to, and to take possession, custody and control of, the going concern businesses operated by Pine Hollow located at 1024 Alberta Way, Concord, CA." (6/13/2025 Order.)

On August 28, 2025, the Receiver filed a motion for an order authorizing him to wind up the business of Pine Hollow. The Receiver subsequently filed an amended wind up motion on September 16, 2025.

On October 28, 2025, the parties and the Receiver filed their Stipulation to [sic] Order Authorizing Receiver to Wind Up Pine Hollow Enterprises, Inc. ("Wind Up Stipulation") which was approved by the Court's Order of the same date. Under the Wind Up Stipulation, the Receiver "is authorized to wind up Pine Hollow's business on such timeline as the Receiver in the exercise of his business judgment" and generally to take the actions the Receiver in his business judgment are reasonably necessary to wind up Pine Hollow, including giving notices to the gasoline product supplier and convenience store franchisor. The Court signed a concurrent order granting the *ex parte* application for approval of the Wind Up Stipulation and confirming the hearing on the Receiver's wind up motion would remain on calendar. (10/28/2025 Order.)

On November 7, 2025, the Receiver filed a second amended motion for order authorizing the wind up of Pine Hollow to reflect the developments in the case and the outstanding issues related to the wind up of Pine Hollow in light of the Wind Up Stipulation. The Court addresses that motion in this ruling.

Legal Background and Analysis of Issues in Dispute

" 'A receiver is an agent and officer of the court, and is under the control and supervision of the court. [Citations omitted.]" " (*Southern California Sunbelt Developers, Inc. v. Banyan Limited Partnership* (2017) 8 Cal.App.5th 910, 922.) (See also *City of Sierra Madre v. SunTrust Mortgage, Inc.* (2019) 32 Cal.App.5th 648, 656 ["A receiver is an officer of the court and is subject to the court's continuing control"]; Code Civ. Proc. § 568; Cal. R. Ct., Rule 3.1179.) The property subject to the receivership is under the Court's control and "continuous supervision." (*City of Santa Monica v.*

Gonzalez (2008) 43 Cal.4th 905, 930.) The Receiver's powers are controlled by statute, the order appointing the Receiver, and subsequent orders of the Court. (*Id.* at 930.) Based on the Court's supervision and control, a receiver may request instructions from the Court regarding the disposition of property and other issues arising in the receivership administration. (*See, generally, United Sav. & Loan Assn. v. Hoffman* (1973) 30 Cal.App.3d 306, 311 [addressing receiver's request for instructions as to disposition of surplus funds].) The Court has wide discretion in approving a receiver's proposed actions in the absence of "evidence of fraud, unfairness or oppression." (*City of Santa Monica v. Gonzalez, supra*, 43 Cal.4th at 931.)

A. The Receiver's Motion

The Receiver's motion seeks instructions regarding three issues: (a) Pine Hollow's obligation to repair piping on the leased property to remediate environmental regulatory violations that have been cited by applicable regulatory authorities; (b) Pine Hollow's obligation to reimburse the property owner/landlord AGL for real property taxes due, and the Receiver's proposed offset of the amount owed by Pine Hollow for the taxes against amounts owed by AGL under the AGL-Pine Hollow Note; and (c) payment of an invoice in the amount of \$3,508.72 to CMA as its bonus for management of Pine Hollow pursuant to agreement Azari contends was approved by the board of Pine Hollow in 2019. Azari has filed a notice of non-opposition to the Receiver's motion and the instructions the Receiver seeks regarding the handling of these matters, specifically that (a) Pine Hollow should conduct the piping repair and remediation, among other reasons, based on its obligation under its lease to do so and the risks of increasing fines and penalties if the repairs are not made; (b) the property tax liability of Pine Hollow under the lease should be paid by offsetting the amount due for the property taxes against the amounts owed by AGL to Pine Hollow under the AGL-Pine Hollow Note; and (c) the CMA invoice for \$3,508.72 should be paid, as the Receiver has not been presented with any evidence by Garaventa as the party objecting to the payment that supports not paying the invoice.

B. Garaventa Objections

Garaventa and his counsel have each filed a declaration in opposition to the Receiver's motion, along with Garaventa also filed a "Notice of Objection" to the three categories of payments the Receiver proposes to make as part of the wind up of Pine Hollow. Garaventa did not file a memorandum in opposition to the motion. To the extent the Notice of Objection is considered Garaventa's brief, the Court agrees with the Receiver that it is legally deficient as unsupported by any legal authority. (*Sprague v. Equifax, Inc.* (1985) 166 Cal.App.3d 1012, 1050.) The declarations filed by Garaventa include many arguments, not necessarily evidence, and raise issues not targeted directly to the issues subject to the Receiver's motion, nor did Garaventa file an opposition memorandum with applicable legal authority connecting the arguments in the declarations to the issues subject to the motion.

C. Arguments Not Pertinent to the Resolution of the Motion

In particular, the Court finds the following issues raised by Garaventa in the declarations not pertinent to the determination of the Receiver's motion:

1. Azari as Sole Owner of Pine Hollow: Garaventa contends that for some number of years, Azari has held himself out to be the sole owner of Pine Hollow. (Bowles Decl. ¶ 3 and Exh. 1.) Garaventa, however, in his declaration declares he is the 50% owner of Pine Hollow.

(Garaventa Decl. ¶ 2.) It is not clear how Azari's position as sole owner or as half owner with Garaventa is relevant to the determination of what obligations Pine Hollow should pay as part of its wind up by the Receiver.

2. General Arguments as to Azari's Alleged Mismanagement of Pine Hollow and Status of Lease with AGL. Garaventa complains about the lack of board meetings for Pine Hollow over a period of years, and his exclusion from management by and control of management of Pine Hollow by Azari alone. (Bowles Decl. ¶¶ 5, 6; Garaventa Decl. ¶¶ 3, 5, 6.) Garaventa's counsel raises concerns regarding whether the lease with AGL was extended to May 2026 or whether as the Receiver has concluded AGL is only a month-to-month tenant. (Bowles Decl. ¶¶ 5, 6.) Regardless, Garaventa concedes, and previously stipulated, that Pine Hollow's business should be wound up by the Receiver, so the status of Pine Hollow as lessee or month-to-month tenant at this point does not appear relevant to the issues subject to the Receiver's request for instructions regarding the three categories of payments.

D. The CMA Invoice and Real Property Taxes

As to the items subject to the Receiver's request for instructions and Garaventa's Notice of Objection, the Court finds that the Receiver should pay the CMA invoice and should pay the real property tax amount owed to AGL by making the offset against the AGL-Pine Hollow Note as recommended by the Receiver based on the following analysis:

1. The CMA Invoice. Garaventa argues that Pine Hollow made excessive management fee payments to CMA in prior periods. (Bowles Decl. ¶ 4; Garaventa Decl. ¶ 9.) Garaventa contends CMA is not entitled to a bonus, and his counsel argues the CMA management fee was unreasonable, but neither declaration provides evidence that Pine Hollow's board did not agree to pay this fee, or that the specific amount of the fee in the invoice in question is an incorrect amount based on that agreement. Garaventa's FAC in fact refers to the "Pine Hollow Board of Directors' decision to increase compensation to CMA to an incredible \$33,000 plus bonus per month." (FAC ¶ 23.) Whether the Board action that produced that agreement was improper or a breach of Azari's fiduciary duties remains the subject of dispute in the pending litigation and the payment to CMA can be contested by Garaventa in his ongoing litigation against Azari.

For the Receiver's purposes in trying to satisfy the corporation's obligations to wind up Pine Hollow's affairs, the record before the Court indicates the Receiver has an invoice from CMA that needs to be paid, that the claim is based on a bonus approved by the Board of Pine Hollow, and that the invoice is an outstanding debt owed by Pine Hollow. (Donell Decl. ¶¶ 13-16 and Exhs. G-J.) The Receiver's reply declaration provides evidence of a written agreement for payment of CMA for its management of Pine Hollow, including a bonus. (Donell Reply Decl. ¶¶ 2, 3 and Exhs. A, B.) The Receiver's motion with respect to

the payment of the CMA invoice is **granted**, and the Receiver is instructed to pay the \$3,508.72 CMA invoice. This payment by the Receiver pursuant to the Court's instructions on this motion shall not prejudice or limit any right of Garaventa to pursue his claims against Azari with respect to the CMA fees in his breach of fiduciary action, including any claim that CMA was not entitled to the bonus or that the bonus was otherwise not properly paid by Pine Hollow based on Garaventa's claims against Azari for breach of fiduciary duty in the management of Pine Hollow alleged in the FAC.

2. Property Tax Liability. The Receiver points to the provision of Pine Hollow's lease that obligates Pine Hollow to reimburse AGL for the real property tax payment for the property within 15 days after AGL makes the payment. (Donell Decl. ¶¶ 5, 17 and Exhs. B and K.) After AGL made demand on Pine Hollow to pay AGL for the real property taxes, the Receiver proposed to the parties that the real property tax payment be made by Pine Hollow offsetting the amount of the tax payment against the outstanding balance of the \$1 million AGL-Pine Hollow Note. (Donell Decl. ¶ 18.) Garaventa objected to the offset. (Donell Decl. ¶ 18.) The Court finds the Receiver's proposal to pay the real property tax payment by offsetting that amount against the balance outstanding under AGL-Pine Hollow Note and reducing the note balance to be reasonable and appropriate. AGL's most recent position that, notwithstanding a stated December 2023 maturity date on the face of the AGL-Pine Hollow Note, no payments are due based on AGL's income further supports the offset proposed by the Receiver. (See Donell Decl. ¶¶ 8, 9 and Exhs. D and E.)

Bowles make arguments regarding prior payments by Pine Hollow to AGL and Azari's lack of accounting for Pine Hollow assets, Azari's alleged mismanagement or improper management of the entities for Azari's own benefit, and he raises questions regarding excessive payments Pine Hollow has made for management and other expenses. (Bowles Decl. ¶¶ 14-18.) Those issues and disputes are more properly addressed in the litigation of Garaventa's breach of fiduciary duty and other claims against Azari related to Pine Hollow and do not warrant the Receiver not paying the taxes due according to the lease to satisfy that obligation as part of the wind up of Pine Hollow.

With respect to the AGL-Pine Hollow Note, Bowles argues that Azari is now responsible (indirectly at least) for the entire balance due under the AGL-Pine Hollow Note because (a) AGL is the obligor under that note, and (b) Azari is now 100% owner of AGL, the obligor. (Bowles Decl. ¶ 9.) The Court may agree, but the Court does not find this relevant to whether the Pine Hollow obligation to pay property taxes under its lease should be paid by an offset against the AGL-Pine Hollow Note.

Bowles also argues that the AGL-Pine Hollow Note is really like retained earnings that Garaventa has paid taxes on as a 50% shareholder of Pine Hollow. (Bowles Decl. ¶ 10.) He then argues in effect that Garaventa would accept a payment from Azari of 50% of the AGL-Pine Hollow Note to resolve "that issue" and that otherwise, the Receiver should

collect the balance of that note from AGL. (Bowles Decl. ¶ 10.) These arguments are not evidence, and no evidence or legal authority has been offered by Garaventa to support these positions. Further, the Receiver's offset of the real property tax liability Pine Hollow owes to AGL would in effect collect at least that amount of the balance of the AGL-Pine Hollow Note immediately. The approach also seems preferable under the circumstances to the Receiver making a cash payment from the remaining cash held by Pine Hollow to satisfy the property tax liability, which is implicitly the only other alternative means of satisfying the obligation.

E. Piping Repairs and Remediation

The Receiver points to Pine Hollow's obligation to maintain the property in compliance with environmental regulations. (Donell Decl. ¶ 4 and Exh. B.) Garaventa does not contest that the lease requires that compliance, or that Pine Hollow determined as of 2019 that the property required repairs to address the piping and environmental compliance. (Garaventa Decl. ¶ 7 and Exhs. B-E.)

Garaventa raises concerns that a reserve of \$800,000 had been established on the Pine Hollow balance sheet to address the repairs, the disposition of which he contends is not known, and he contends that corporate records of Pine Hollow indicate repairs had commenced as of 2019 and were partially paid for. (Garaventa Decl. ¶ 7 and Exhs. B- E.) (*See also* Bowles Decl. ¶¶ 7, 8.) Garaventa cites an excerpt from Azari's deposition that "Phase 1" of the work had been completed. (Garaventa Decl. ¶ 7 and Exh. F.) He also argues the violations for the cite from the State California Environmental Reporting System ("CERS") website provided to the Receiver by Azari is not dated. (Donell Decl. ¶¶ 10, 11.)

The Receiver estimates based on information from Azari and an estimate from December 2020 for the cost of the work that the remediation and piping repair could cost over \$450,000 and take 4 to 5 weeks to complete. (Donell Decl. ¶¶ 10-12 and Exh. F.) The Receiver recommends that the repair work be performed, because the lease obligates Pine Hollow as tenant to make the repairs. (Donell Decl. ¶¶ 4, 10-12.) The Receiver though acknowledges (a) Pine Hollow does not have the funds to make the repairs; (b) one of the essential parts is on backorder and may not be available for 30 days; and (c) the repairs may take 4-5 weeks to complete. (Donell Decl. ¶ 10.) The Receiver's reply again recommends that the Receiver complete the pipeline remediation "subject to the Receiver obtaining adequate funding to perform the repair work." (Reply p. 1, ll. 25-26.)

Garaventa's position is that the repairs will only benefit AGL as the property owner, that if Azari wishes to "recapture" the benefit of the repairs to the property for AGL, the repairs should only be made after AGL pays the balance owed on the AGL-Pine Hollow Note, and that rather than making these repairs, Garaventa's counsel argues Pine Hollow's business "should be shut down immediately." (Bowles Decl. ¶ 20.)

The Court has some concerns about the issue of the piping repairs and remediation in light of the time and expense to complete the repairs and lack of current funding. Nevertheless, the Court agrees with the Receiver that the evidence before the Court shows Pine Hollow is obligated under the lease to remediate the piping issues. An obvious source of funding for the repairs would be AGL's immediate repayment of its outstanding debt to Pine Hollow under the AGL-Pine Hollow Note, which would provide more than sufficient funds to complete the repairs. Azari has already apparently

offered to pay half the note debt of \$500,000, which exceeds the estimate for the repairs. Given the disputes between the shareholders and the contentious history of the operations and management of Pine Hollow and AGL, it would appear to be in the best interests of Pine Hollow that the Receiver, as a neutral fiduciary control and supervise the remediation, subject to the Receiver obtaining the funding necessary.

The Court assumes that the Receiver could not immediately cease Pine Hollow's operations, as Garaventa argues, without creating additional liability to Pine Hollow's vendors and potentially to AGL to the detriment of Pine Hollow and ultimately its shareholders. Nevertheless, the Receiver should address this assumption at the hearing as well as the following additional issues before the Court finally grants the Receiver's requested instructions and approves the proposed repair/remediation of the piping issues at the property:

- a. The Receiver's independent investigation, apart from the representations of and documents provided by Azari, as to the existence, nature and scope of any outstanding/unresolved environmental violations, the nature and scope of repairs needed to remedy the violations, the cost of the repairs, and CRGS Compliance Services, if that is the company the Receiver expects to engage to perform the repairs; and
- b. The status of the notices to the fuel product supplier and convenience store franchisor, when the Receiver anticipates Pine Hollow will cease business operations, and, assuming a funding source is available for the remediation, the timing of the commencement of repairs in relation to the cessation of the ongoing operations of Pine Hollow.

Conclusion and Ruling

The Court will **grant** the Receiver's motion regarding the CMA invoice and the real property taxes being paid by an offset against the balance due under the AGL-Pine Hollow Note. The Court is **inclined to also grant** the Receiver's motion with respect to the request for authorization for the Receiver to perform the remediation, subject to the Court considering the additional information requested above regarding the proposed piping repairs.

17. 9:00 AM CASE NUMBER: MSC19-02043
CASE NAME: GARAVENTA VS AZARI
***HEARING ON MOTION IN RE: DISMISS SECOND, THIRD AND FOURTH CAUSES OF ACTION**
FILED BY: AZARI, MEHRZAD
TENTATIVE RULING:

See Line 15.

18. 9:00 AM CASE NUMBER: MSC22-00088
CASE NAME: KALAMAS VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: ATTORNEY FEES**
FILED BY: JOHN MUIR MEDICAL GROUP
TENTATIVE RULING:

Defendant John Muir Health prevailed in this case in a matter heard before a Judicial Referee. Prior to trial, defendant made an offer under Code of Civil Procedure section 998 of \$1 million plus

attorney's fees to be determined. The statute provides that "If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover his or her post offer costs and shall pay the defendant's costs from the time of the offer. (CCP § 998(c) [emphasis added].)

Defendant contends that "costs" for this purpose include attorney's fees, relying on *Scott Co. of Cal. v. Blount Inc.* (1999) 20 Cal.4th 1103, 1113. In *Scott*, however, the suit involved a contract that contained an attorney's fees provision. As the Supreme Court pointed out, "Under Code of Civil Procedure sections 1032 and 1033.5, costs include attorney fees if authorized by contract." (*Id.*, at 1106; See CCP § 1033.5(a)(10) (A)-(C) [recoverable costs include "Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law."]) Thus, the court found that "The costs specified by section 1033.5 include attorney fees 'when authorized by ...(A) Contract.'" (§ 1033.5, subd. (a)(10)(A).)

Defendant offers no other authority supporting its claim that recoverable costs include attorney's fees in this case. It does not claim that the fees were incurred to enforce a contract with an attorney's fee clause under Civil Code section 1717. If the action were covered by section 1717, defendant presumably would simply move for all its attorney's fees pursuant to the contract, since it is the prevailing party, unlike the defendant in *Scott*.

The motion is denied.

19. 9:00 AM CASE NUMBER: MSC22-00088
CASE NAME: KALAMAS VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: STRIKE OF TAX COSTS**
FILED BY: KALAMAS, ALICIA
TENTATIVE RULING:

On the Court's own motion, this matter is **continued to January 29, 2026, 9:00 a.m.**

20. 9:00 AM CASE NUMBER: MSC22-00438
CASE NAME: GODFREY VS. DENARD
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS, SET 2**
FILED BY: DENARD, DESIREE
TENTATIVE RULING:

Defendant moves to compel responses without objection to Requests for Admission, set two, specifically numbers 19-22. The underlying case involves plaintiff's claim that defendant distributed on the internet "revenge porn," containing her image. The requests are as follows:

No. 19: Admit that you knew that Jerry Law posted the video in a chat.

No. 20: Admit that you asked Jerry Law to apologize for sharing the video in a chat.

No. 21: Admit that Jerry Law used the stage name "Lucky Dollaz" before you applied for the

registration of the “Lucky Dollaz” trademark with the U.S. Patent and Trademark Office.

No. 22: Admit that after Jerry Law refused to apologize to you for sharing the video, you applied for registration of the trademark “Lucky Dollaz” with U.S. Patent and Trademark Office.

Plaintiff objected to each request as vague, irrelevant, and invading her privacy. Although she has supplemented her response twice, each supplement simply contained a longer explanation for the basis of the objection. No substantive response was ever provided. Defense counsel adequately met and conferred on the matter.

“[A] party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (C.C.P. § 2017.010.) Thus, the fact that the information may not itself be admissible in evidence is not a valid objection.

Defendant explains the relevance as follows: Jerry Law is the defendant in a similar case brought by Ms. Godfrey. Ms. Godfrey claims that Law received the video from Ms. Denard, defendant in this case, and then distributed it to third parties. Ms. Godfrey then “punished” Law by registering his stage name (“Lucky Dollaz”) and registered it with the U.S. Patent and Trademark Office, effectively “taking” it from him. Defendant argues that this relates to the video sharing, and that Ms. Godfrey’s reaction to it is relevant.

Plaintiff responds that this case is about defendant Denard sharing the video, not about Jerry Law, the defendant in a separate case. She maintains that her reaction is “understandable.”

Plaintiff’s reaction to the video sharing, whether it be justifiable trauma or vindictiveness, is relevant to the subject matter of the action, and could lead to admissible evidence. Since Mr. Law obtained the video from Ms. Denard, the effects of distribution of the video by Mr. Law could be relevant to the alleged liability of Ms. Denard. In addition, they could show knowledge of the video distribution, which is relevant to defendant’s statute of limitations defense. Notably, the requests are written in such a way as to ask for admission only of the actual actions by Ms. Godfrey, not to admit to any particular mental state. Thus, they do not involve any sensitive private information.

Ms. Godfrey contends that the motion is untimely. She served the initial responses on July 22, 2025. After meeting and conferring, plaintiff served supplemental responses on July 24 and July 29, 2025. The motion was filed on August 5, 2025. Whether measured from the first response date or the third date, the motion was filed within 45 days of the response. (C.C.P. § 2033.290(c).) It was timely.

The motion is granted. Plaintiff is to serve responses to Requests for Admission, set two, numbers 19-22, within 14 days after notice of entry of this order.

Defendant seeks sanctions of \$1,000 in attorney’s fees, which is less than the amount that would be obtained based on the lodestar fee of 3 hours times a \$400 hourly rate.

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)

against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (C.C.P. §2033.290(d).) Plaintiff did not act with substantial justification, and no other circumstances make imposition unjust. Indeed, in the meet and confer process, plaintiff indicated her willingness to be sanctioned. **Sanctions of \$1,000 are awarded, to be paid within 14 days of notice of entry of this order.**

21. 9:00 AM CASE NUMBER: MSN21-0558
CASE NAME: CITY OF VALLEJO, A MUNICIPAL CORPORATION VS. STATE OF CALIFORNIA STATE DEPARTMENT OF WATER RESOURCES, A CALIFORNIA STATE AGENCY
***HEARING ON MOTION IN RE: TO STRIKE OR TAX PETITIONER'S COSTS**
FILED BY: THE CALIFORNIA DEPARTMENT OF WATER RESOURCES, A CALIFORNIA AGENCY
TENTATIVE RULING:

Respondents and Real Party in Interest move to strike or Tax Petitioner’s costs, in the amount of \$6,727.69. No party has opposed the motion.

In the underlying case, a group of petitioners sought relief under CEQA, raising a variety of alleged inadequacies in the Environmental Impact Report for the project. They succeeded only on one issue, i.e., consideration of impact of the project on shoreline fishing within the project area. That particular issue was raised by two of the many petitioners, Reclamation District No. 2060 and Reclamation District No. 2068. The environmental documentation was revised, and found satisfactory by the Court (over some opposition) in a writ return proceeding.

Under Code of Civil Procedure section 1032(a)(4), “If any party recovers other than monetary relief... the ‘prevailing party’ shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides.”

Judged by the overall scale of the project and the number of inadequacies alleged in the Environmental Impact Report, the Court does not conclude that petitioners were the prevailing party in the action. Accordingly, the **motion to strike costs is granted.**

22. 9:00 AM CASE NUMBER: N23-0409
CASE NAME: ALEXANDRA PADILLA VS. BRIAN DEMAINE
HEARING IN RE: JOINDER IN DEF'S MOTION FOR TERMINATING AND MONETARY SANCTIONS AGAINST PLAINTIFF
FILED BY: DEMAINE, BRIAN KEITH
TENTATIVE RULING:

The Court will not repeat the events that have led to this point, which are well-chronicled in the Court’s two prior orders in the case.

Plaintiff appeared at her deposition, without counsel. She declined to answer a number of questions,

on grounds of work product, and attorney-client privilege (although at this time, she has no attorney). Moving parties may have grounds for a motion to compel further responses to her deposition. The issues from the deposition, even in combination with the earlier conduct that resulted in substantial monetary sanctions, are sufficient to lead the Court to conclude that a terminating sanction is not warranted at this time. Whether it would be granted if she again fails to fulfill her discovery obligations could be the subject of a renewed motion. For now, **the motion for terminating or evidentiary sanctions is denied.**

23. 9:00 AM CASE NUMBER: N23-0409
CASE NAME: ALEXANDRA PADILLA VS. BRIAN DEMAIN
***HEARING ON MOTION IN RE: (SECOND MOTION) TERMINATING AND MONETARY SANCTIONS**
AGAINST PLAINTIFF FOR FAILURE TO OBEY COURT ORDER
FILED BY: DEMAIN, BRIAN KEITH
TENTATIVE RULING:
See line 22.

24. 9:00 AM CASE NUMBER: N23-0409
CASE NAME: ALEXANDRA PADILLA VS. BRIAN DEMAIN
***HEARING ON MOTION IN RE: TERMINATING AND MONETARY SANCTIONS AGAINST PLTF**
FILED BY: HOWARD ORTHOPEDICS, INC., A CALIFORNIA CORPORATION
TENTATIVE RULING:
See line 22.